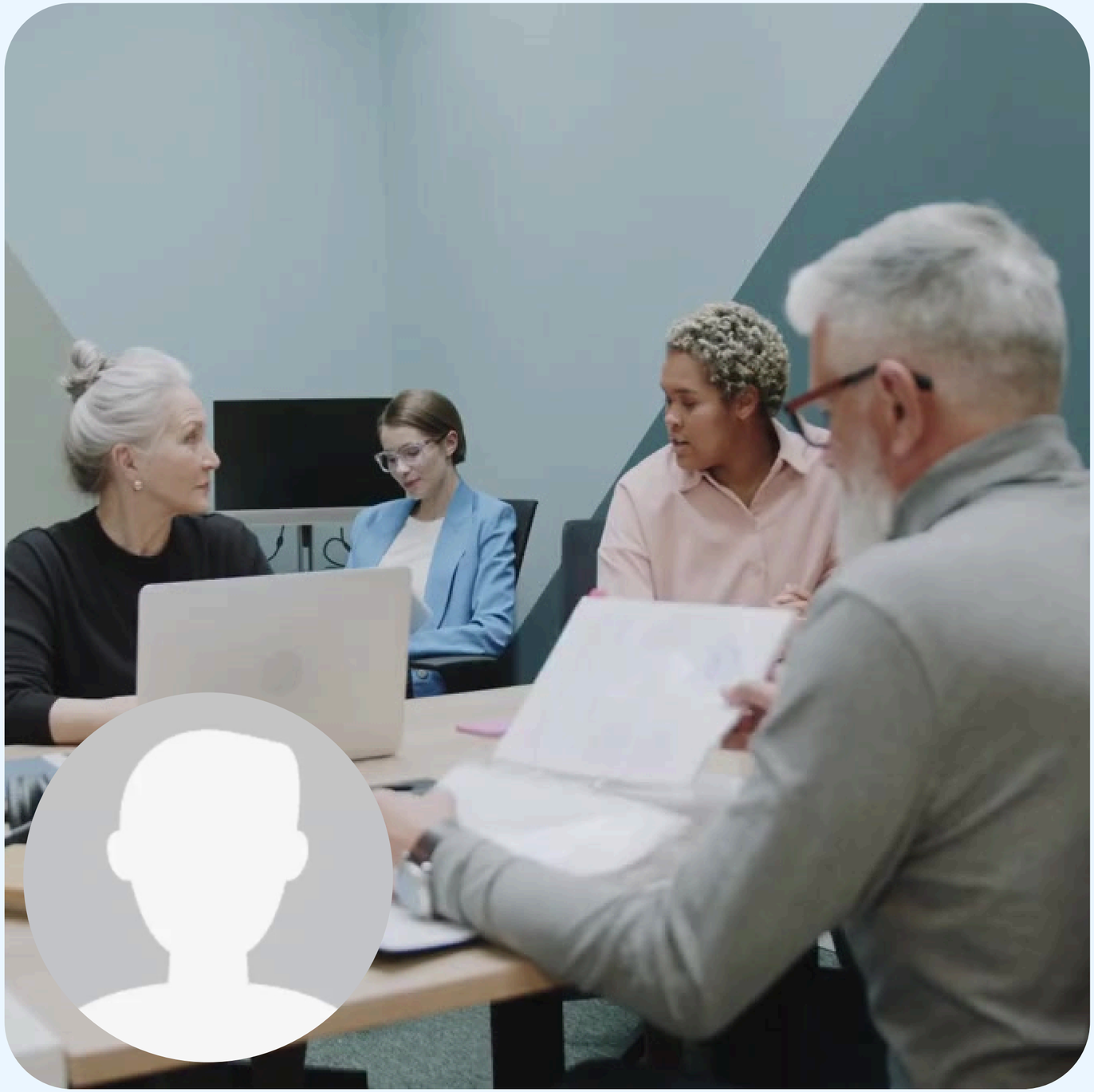
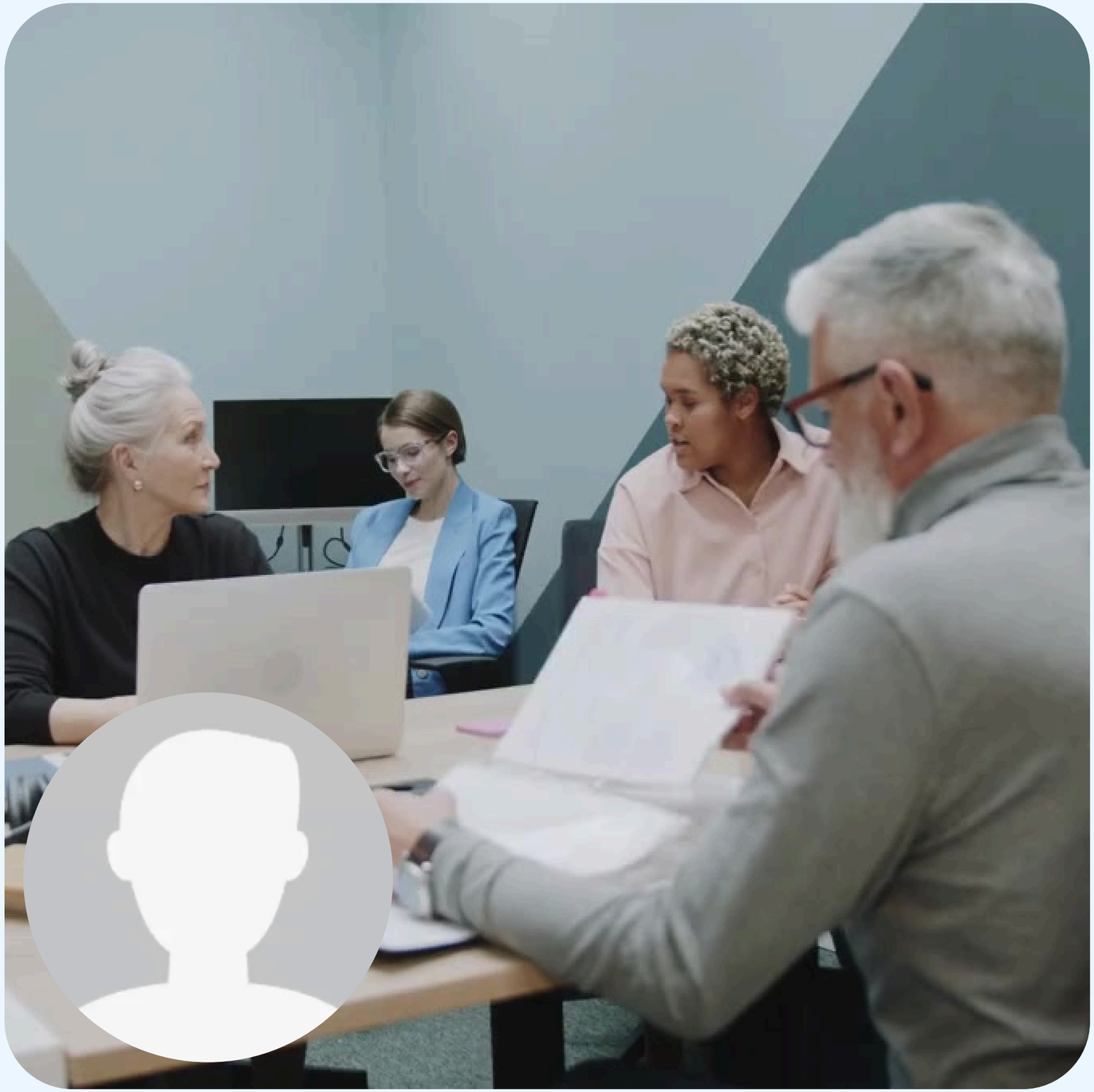
AIGP.

Intellectual Property Laws Relevant to AI



1. Patents and AI



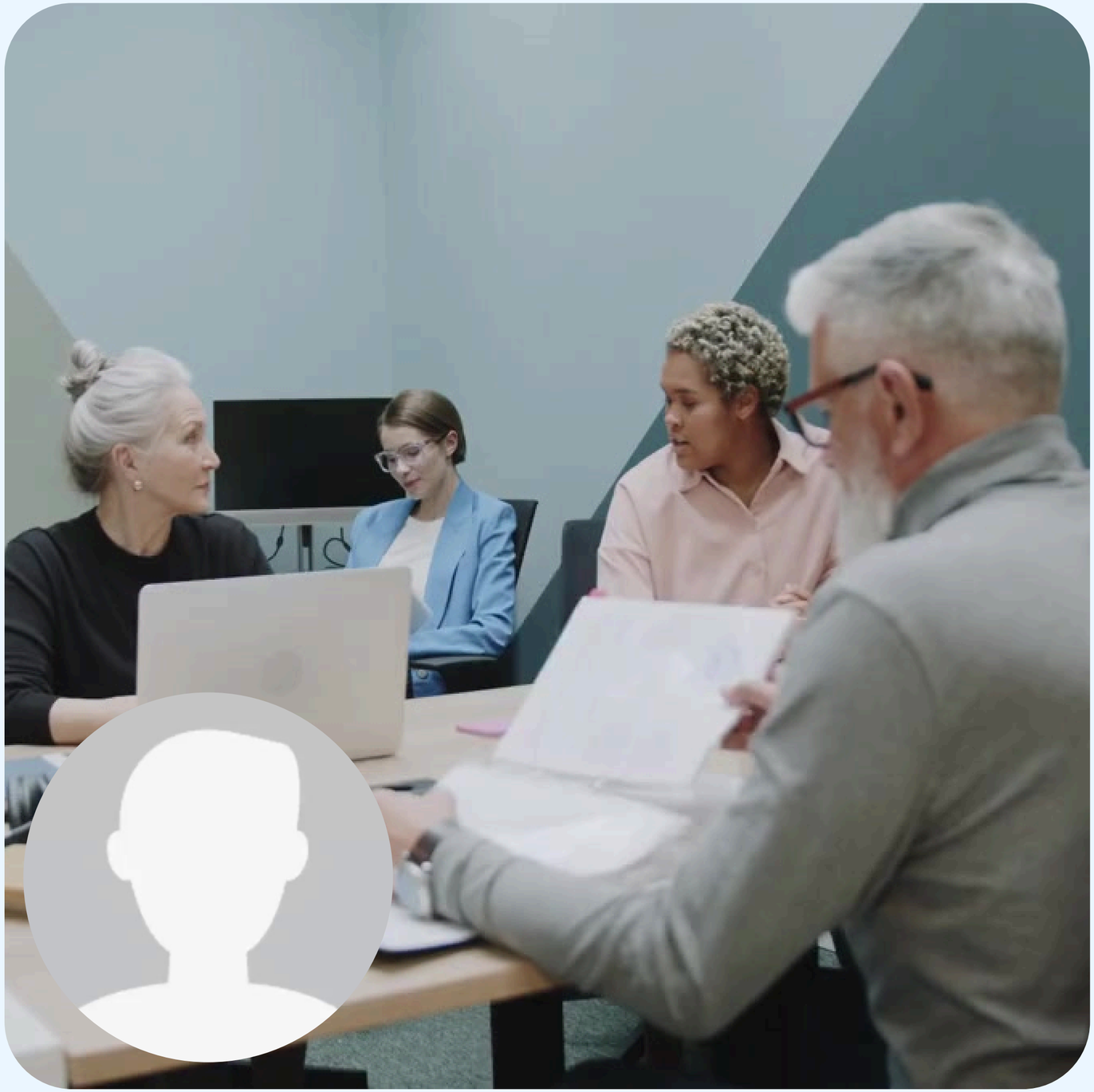
EU

- European Patent Convention (EPC)

the patenting of inventions in Europe, including AI-related innovations, provided they meet the criteria of novelty, inventive step, and industrial applicability.

- EPO Guidelines for Examination

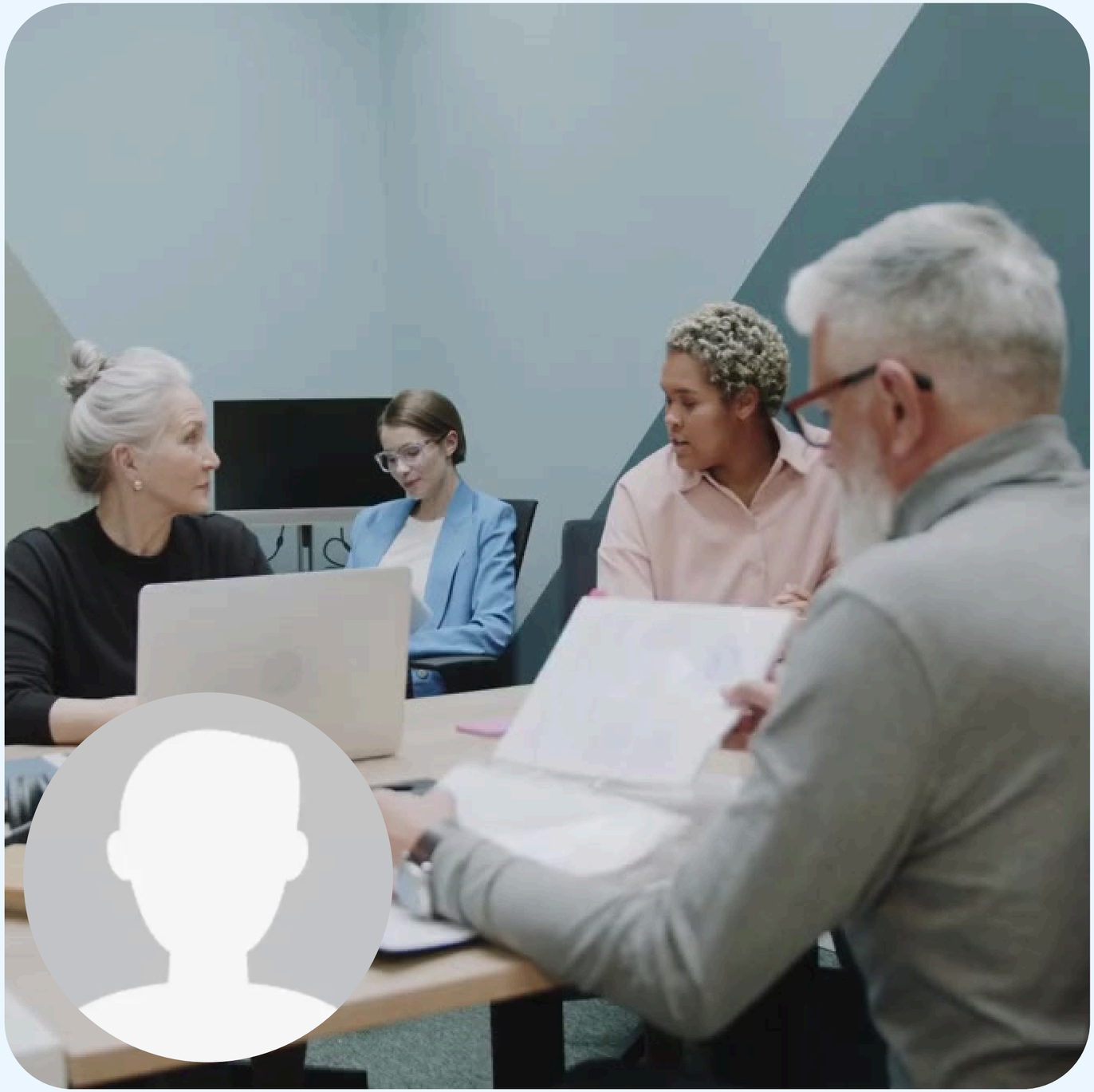
The European Patent Office (EPO) provides specific guidelines on how AI and machine learning inventions are to be assessed.



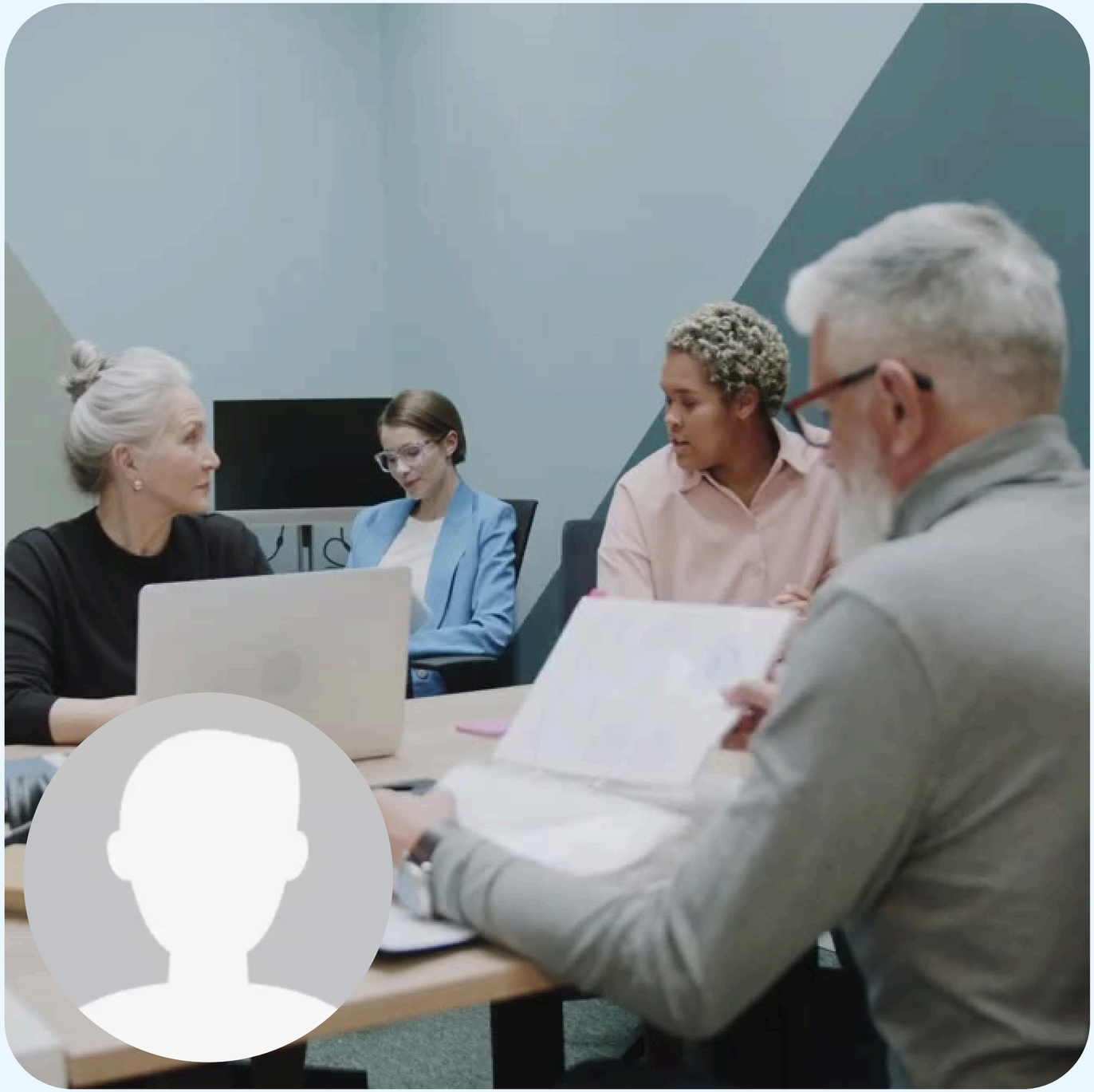
US

- 35 U.S.C. § 101: In the US, the Patent Act mandates that inventions must be novel, non-obvious, and useful to be patentable, with specific guidelines for AI and machine learning patents provided by the USPTO.

- The Supreme Court's decision in Alice Corp. v. CLS Bank International clarified patent eligibility standards, emphasizing the treatment of abstract ideas, which is pertinent to AI innovations.



2. Copyrights and AI



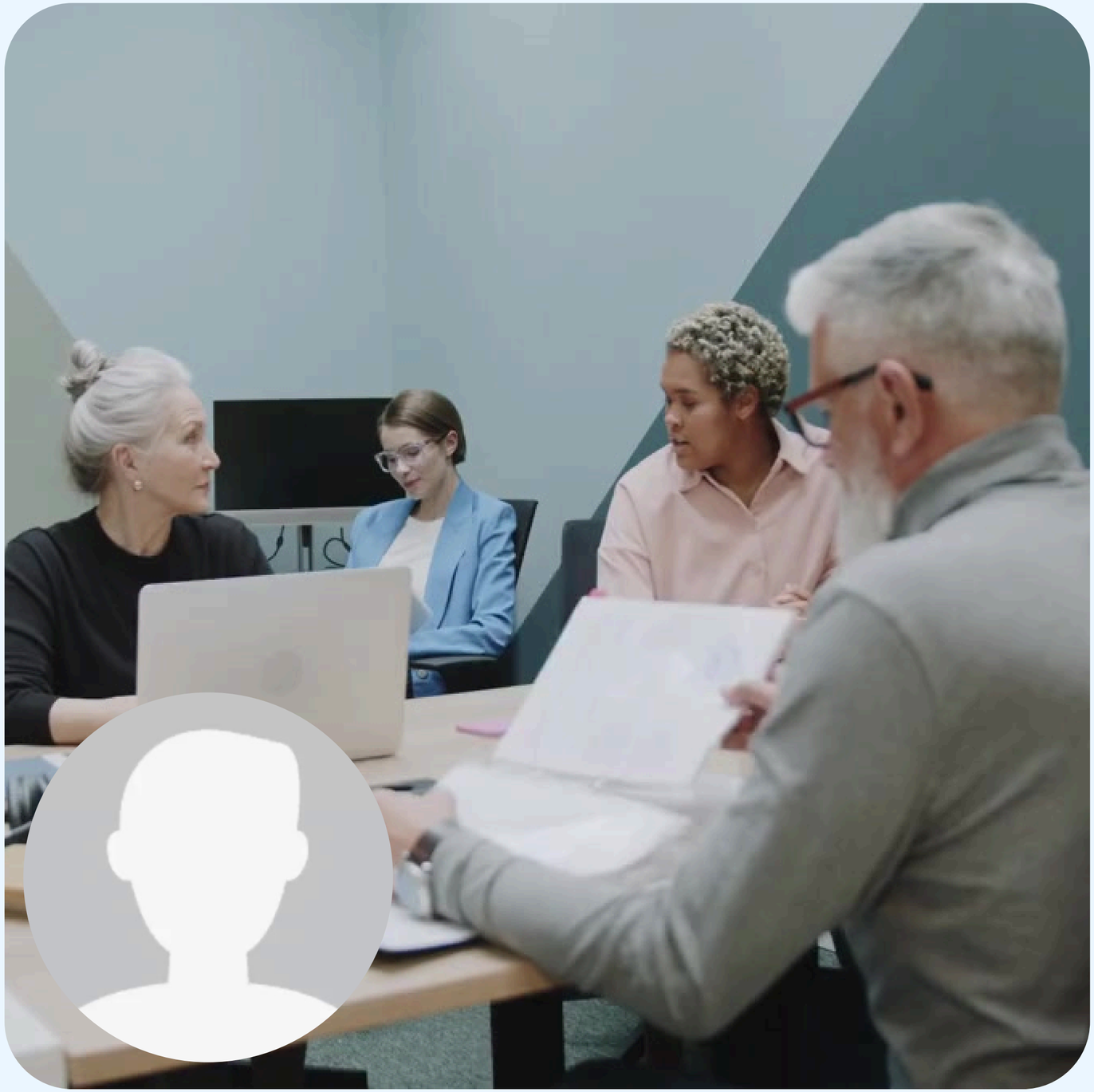
EU

- Directive 2001/29/EC (InfoSoc Directive)

This directive harmonizes the laws on copyright and related rights across the EU, providing protection for software and potentially AI-generated works.

- European Copyright Directive (Directive (EU) 2019/790)

This directive includes provisions that may impact AI, particularly in relation to text and data mining for research purposes.

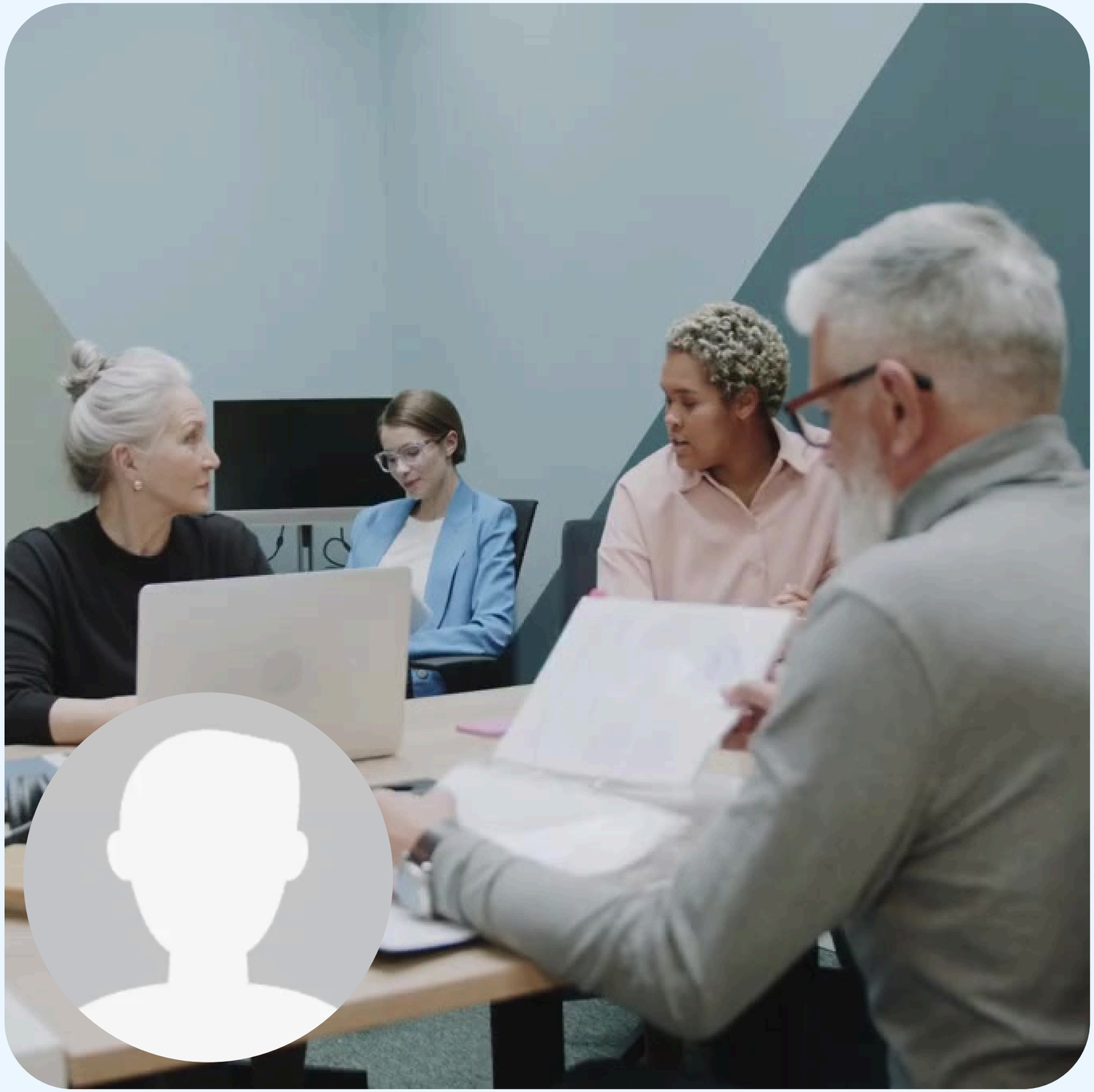


US:

- 17 U.S.C. § 101

defines the scope of copyright protection. The US Copyright Office has issued guidance on the registration of AI-generated works, clarifying that AI cannot be listed as the author.

3. Trademarks and AI



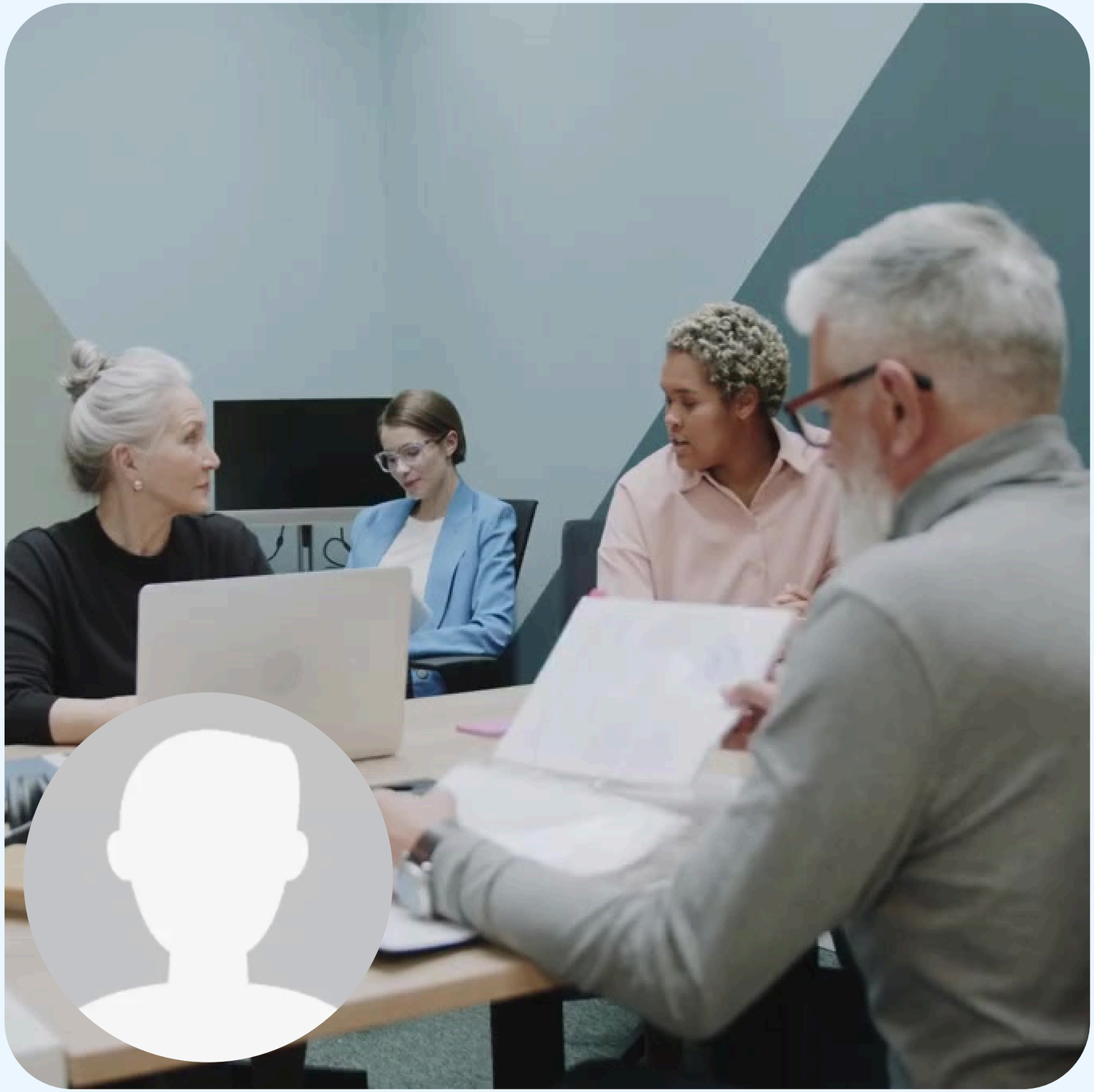
EU:

- EU Trademark Regulation (EUTMR)

This regulation governs the registration of trademarks in the EU, allowing for the protection of AI product names and logos.

- EUIPO Guidelines

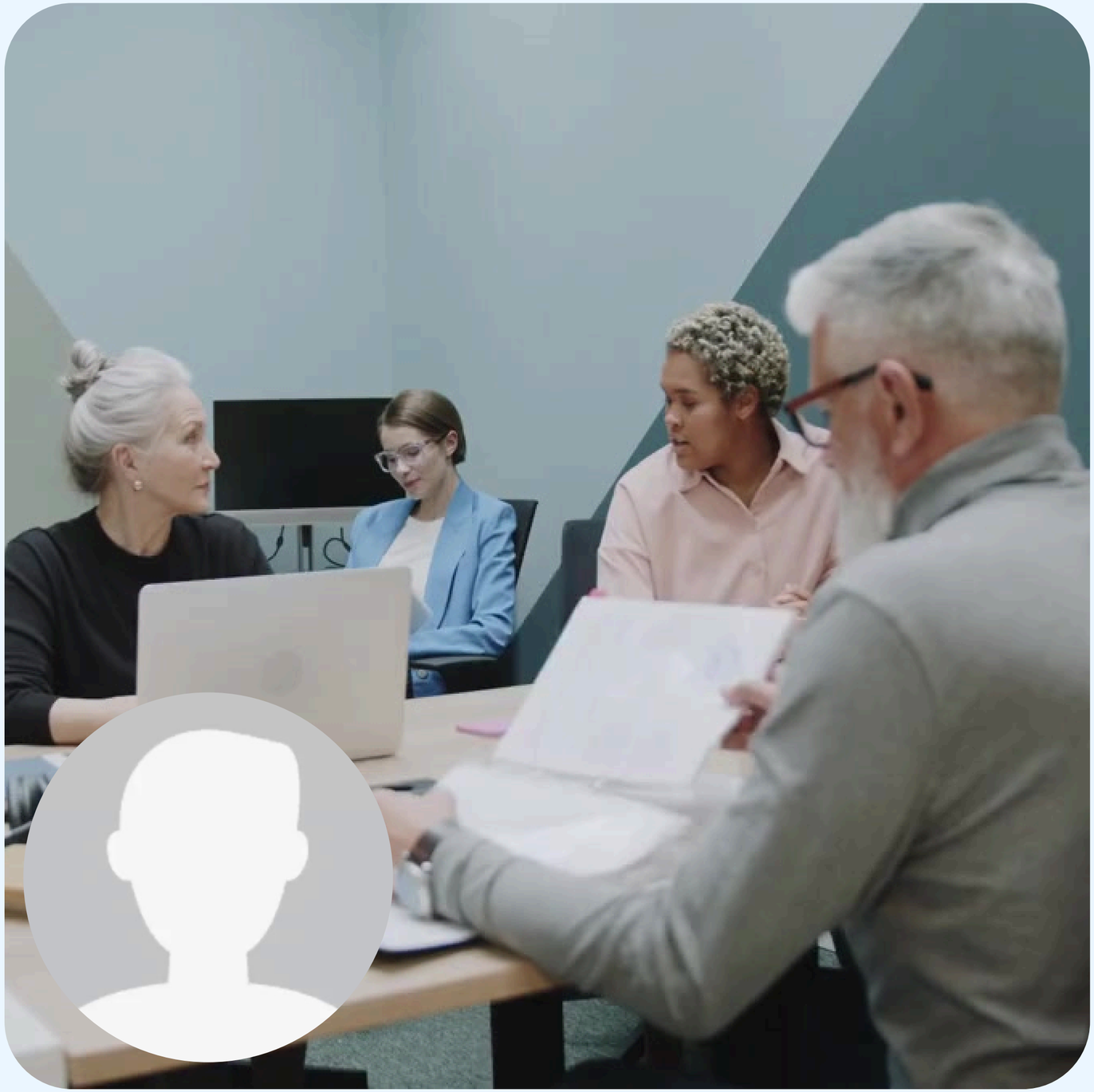
The European Union Intellectual Property Office provides guidelines on trademark registration, including for AI-related trademarks.



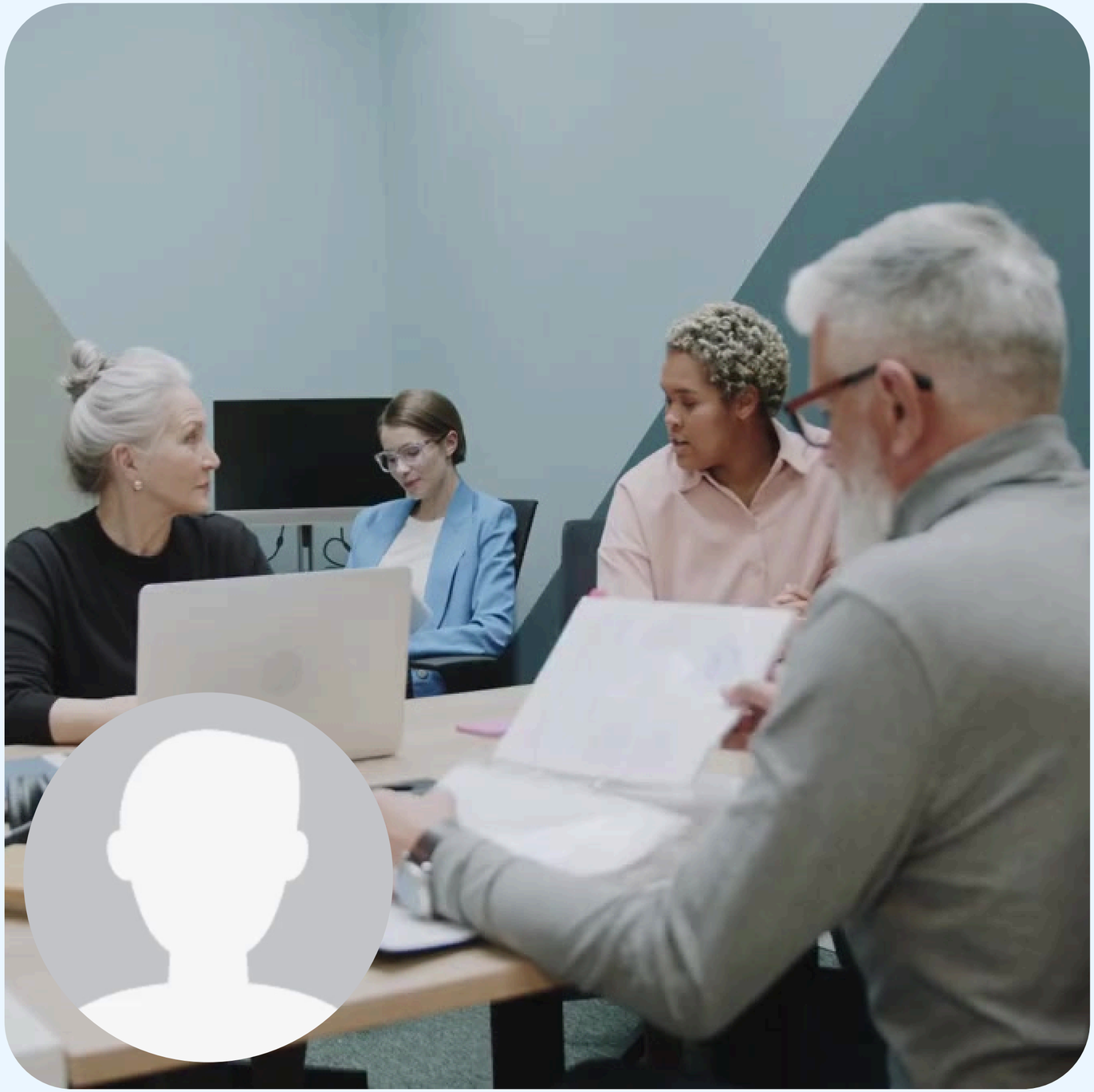
US:

- Lanham Act (15 U.S.C. § 1051 et seq.):

governs trademarks in the US. The USPTO handles the registration of trademarks, including those related to AI products.



4. Trade Secrets and AI



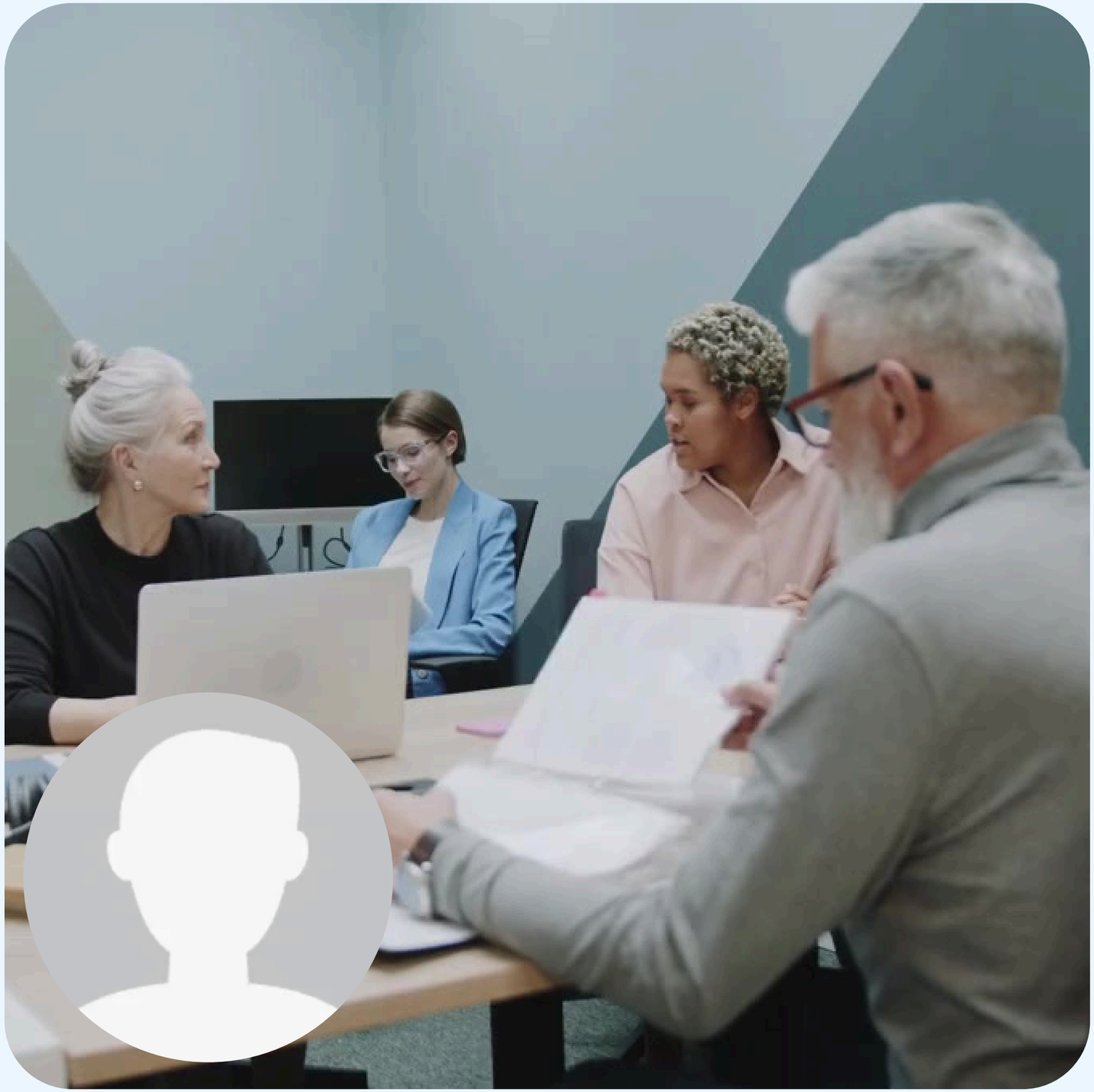
EU:

- EU Trade Secrets Directive (Directive (EU) 2016/943)

This directive harmonizes the protection of trade secrets across the EU, providing a legal framework for safeguarding AI-related trade secrets.

- National Implementations

Member states have implemented the directive into national laws, creating specific provisions for trade secret protection.



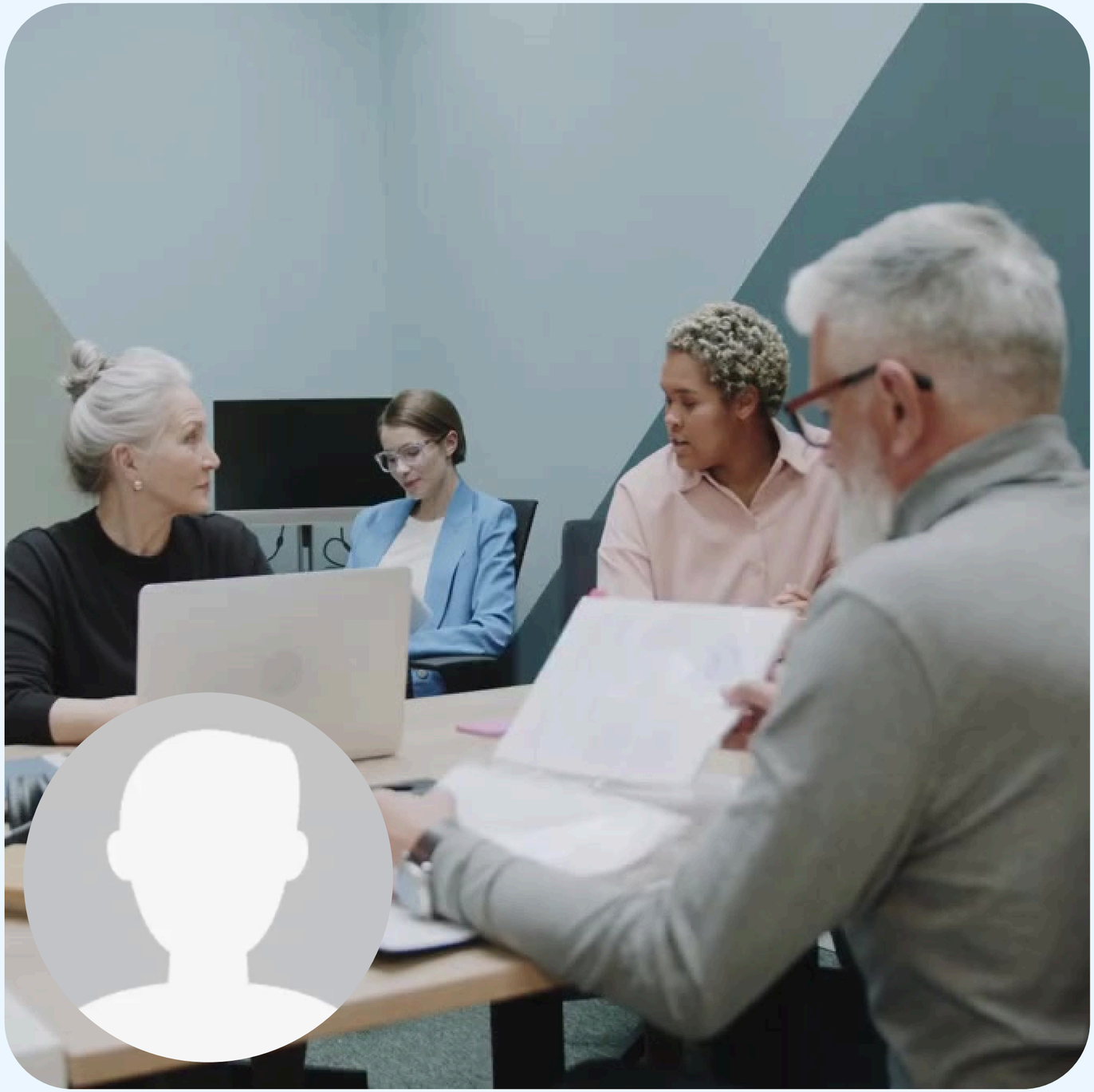
US:

- Defend Trade Secrets Act (DTSA) (18 U.S.C. § 1836 et seq.)

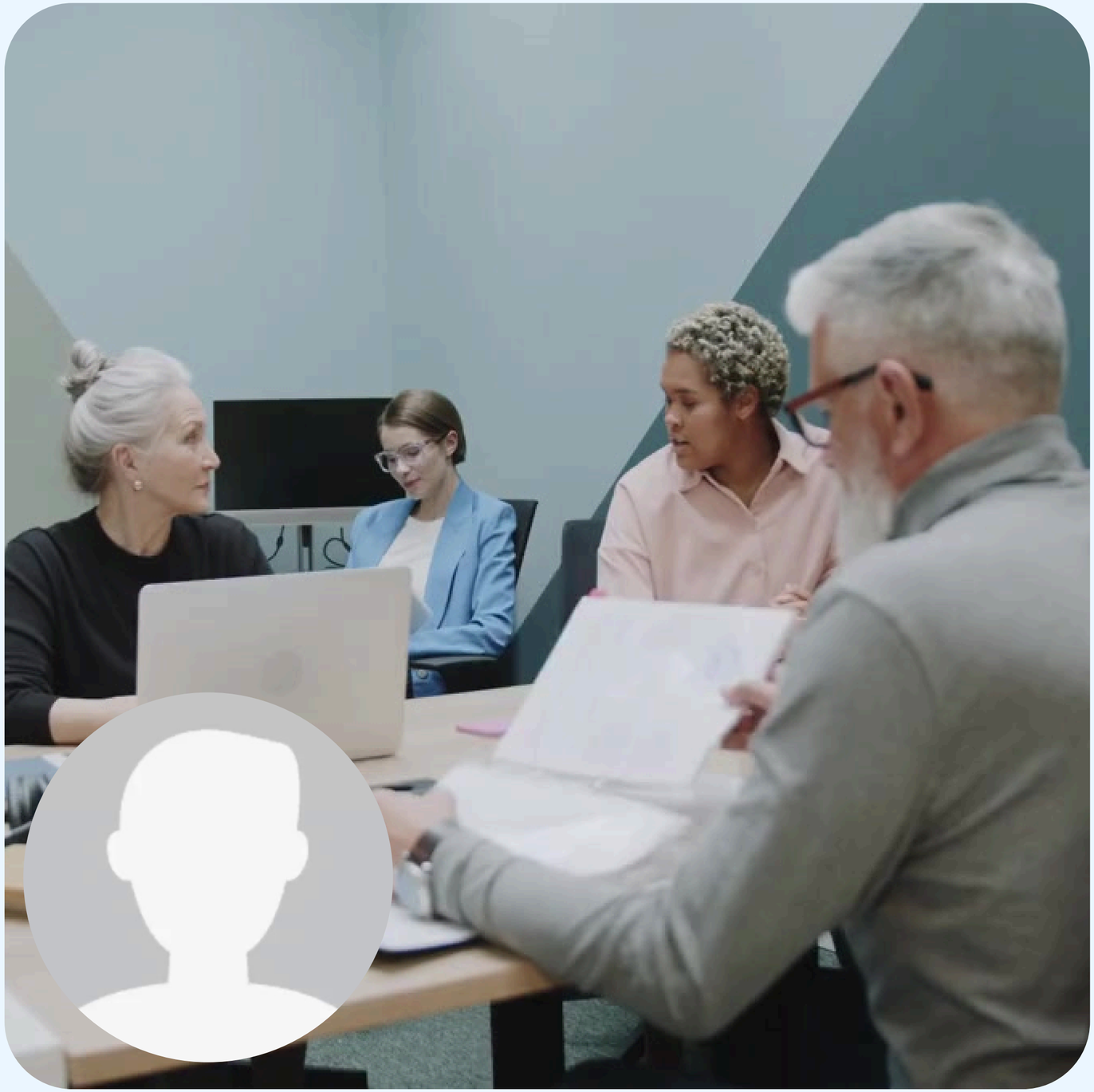
This federal law provides a framework for protecting trade secrets in the US, applicable to AI innovations.

- Uniform Trade Secrets Act (UTSA)

Many states have adopted this act, which provides consistent trade secret protection across jurisdictions.



Licensing and AI



Challenges

- Terms and Conditions

Crafting licensing agreements that are clear, enforceable, and protect the licensor's interests.

- Compliance

Ensuring that licensees adhere to the agreed terms, particularly regarding usage limitations and royalty payments.